



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

March 5, 2020

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 201808002 regarding Lieutenant Kevin Kenny, Tax No. [REDACTED] (DADS No. 2019-21345) and Police Officer Brian Mahon, Tax No. [REDACTED] (DADS No. 2019-21344)

Dear Mr. Darche:

The Police Commissioner agrees with CCRB's findings and has determined that Lt. Kenny and P.O. Mahon improperly stopped a male individual and that P.O. Mahon improperly frisked the male. P.O. Mahon stated he stopped the male because he observed him walking with his right hand in his pocket and a foreign pointed object, protruding from that same pocket, which he believed to be a weapon. Additionally, the male quickly changed direction while gripping the object after seeing the officers. However, P.O. Mahon never articulated that the bulge appeared to be a gun or any specific weapon and Lt. Kenny never articulated that he saw anything indicating that the male was concealing any specific type of weapon. Lt. Kenny stated he observed the male walking at a fast pace, looking over his shoulder and adjusting his waistband multiple times. P.O. Mahon frisked the male's waistband and recovered a headphone case. Therefore, the officers did not have reasonable suspicion to conduct a stop of the male and P.O. Mahon did not have reasonable suspicion to frisk the male.

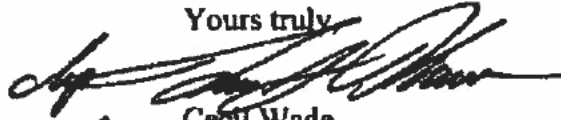
The Police Commissioner agrees with CCRB that command discipline penalties are appropriate and directs that a Schedule "A" command discipline be issued to each respondent. Lieutenant Kenny has no prior substantiated allegations and P.O. Mahon has not received any previous command disciplines.

COURTESY • PROFESSIONALISM • RESPECT

Website: <http://nyc.gov/nypd>

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

A handwritten signature in black ink, appearing to read 'Cecil Wade', written over a horizontal line.

Cecil Wade
Deputy Chief
Commanding Officer
Police Commissioner's Office